

Massey
Signature of Sponsor

AMEND Senate Bill No. 1927*

House Bill No. 1883

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Super Speeder Accountability Act."

SECTION 2. Tennessee Code Annotated, Title 55, Chapter 10, is amended by adding the following as a new part:

55-10-901. Legislative findings – Purpose – Applicability.

(a) The general assembly finds that:

- (1) Excessive speeding is a leading cause of traffic fatalities and injuries;
- (2) Speeding drivers negatively impact all who use the road, including pedestrians, bicyclists, motorcyclists, and other forms of transportation;
- (3) Intelligent speed assistance (ISA) devices offer an improved solution to address excessive speeding;
- (4) Tools utilized to reduce speeding on roadways often include issuing traffic fines, suspending licenses, and impounding cars, but these solutions are no longer effective to address excessive, repeated speeding;
- (5) Traffic fines do not substantially deter speeding or change behavior, and most drivers with a suspended or revoked license continue to drive;
- (6) ISA technology enables individuals to continue driving, issues a meaningful penalty, and facilitates driver education and training to create safer driving habits; and

(7) Utilizing ISA devices for high-risk drivers, particularly those with repeated speed-related violations, can prevent recidivism and provide long term traffic safety improvements.

(b) The purpose of this part is to enhance highway safety, promote safer driving habits, and keep the public safe on the road by leveraging technology that enables individuals to continue driving, while preventing speeding.

(c) This part applies only to noncommercial driver licenses and motor vehicles.

55-10-902. Part definitions.

As used in this part:

(1) "Department" means the department of safety;

(2) "Excessive speeding" means:

(A) Traveling at ten miles per hour (10 mph) or greater in excess of the posted speed limit, if the posted speed limit is forty miles per hour (40 mph) or less; or

(B) Traveling at twenty miles per hour (20 mph) or greater in excess of the posted speed limit, if the posted speed limit is greater than forty miles per hour (40 mph);

(3) "Intelligent speed assistance device" or "ISA device":

(A) Means an aftermarket device that:

(i) Uses location-based technology to actively limit a motor vehicle's speed to posted or pre-set speed limits; and

(ii) Is tamper-resistant and capable of reporting attempts to disable or circumvent functionality; and

(B) Does not include technology that is provided by a motor vehicle manufacturer as a component of a new motor vehicle and that controls or affects the speed of a motor vehicle;

(4) "ISA device provider" or "provider" means an individual or entity that is responsible for the installation, user training, service, and maintenance of intelligent speed assistance devices;

(5) "ISA device usage period" means:

(A) Except as provided in subdivision (5)(B), if the person is a speeding offender under subdivision (7)(A), (7)(B), or (7)(D), a three-hundred-sixty-five-consecutive-day period or the entire period of the person's driver license suspension or revocation, whichever is longer;

(B) If the person is a speeding offender under subdivision (7)(C), a period for not less than two (2) years and not more than five (5) years; or

(C) If the person is a speeding offender under subdivision (7)(E) or (7)(F), a period of nine (9) months after satisfactory completion of a driver improvement course;

(6) "Manufacturer" means an individual or entity responsible for the design, construction, or production of an ISA device that has been certified by the department pursuant to § 55-10-906; and

(7) "Speeding offender" or "offender" means:

(A) A person whose driver license has been revoked pursuant to § 55-50-501 due to conviction, or forfeiture of bail not vacated, upon two (2) charges of reckless driving under § 55-10-205 committed within a period of twelve (12) months where speed was a factor in each violation;

(B) A person whose driver license has been revoked pursuant to § 55-50-501 due to a conviction for reckless endangerment by vehicle in violation of § 39-13-103 where speed was a factor;

(C) A person whose driver license has been revoked pursuant to § 55-10-503 for drag racing in violation of § 55-10-502;

(D) A person whose driver license has been suspended or revoked pursuant to § 55-50-502(a)(1)(C) due to frequent convictions for excessive speeding or moving traffic violations where speed was a factor;

(E) A person who is eighteen (18) years of age or older whose driver license has been suspended pursuant to § 55-50-505 due to a conviction for excessive speeding that contributed to the accumulation of twelve (12) or more points within a twelve-month period; or

(F) A person who is less than eighteen (18) years of age whose driver license has been suspended pursuant to § 55-50-505 due to a conviction for excessive speeding that contributed to the accumulation of six (6) or more points within a twelve-month period.

55-10-903. Sentencing of speeding offenders.

(a) Notwithstanding chapter 50, part 5 of this title or another law to the contrary and in addition to any penalties provided by law, when a person's driver license is subject to suspension or revocation upon the conviction for an offense that qualifies the person to be deemed a speeding offender, the court shall require the offender to install and use an ISA device for the ISA device usage period, unless the court waives the ISA device requirement and makes a finding, for good cause shown, in support of the waiver. The ISA device usage period must commence on the date of ISA device installation.

(b) Upon ordering the use of an ISA device pursuant to subsection (a), the court shall:

(1) Notify the department of the requirement and the ISA device usage period;

(2) Direct that the records of the department reflect that the person shall not operate a motor vehicle that is not equipped with an ISA device; and

(3) Direct the department to attach or imprint a notation on the motor vehicle operator's license of a person restricted under this section, stating that the person may operate only a motor vehicle equipped with an ISA device.

(c) Upon receipt of notice from the court, the department shall:

(1) Require the person to install and use a certified ISA device on each motor vehicle operated by the person as a condition for obtaining and maintaining a restricted driver license;

(2) Suspend the person's driver license and issue the person a restricted driver license that indicates the ISA device requirement; and

(3) Not issue the person or reinstate any other driver license until the person successfully completes the ISA device usage period.

(d) A person's driver license must remain suspended pursuant to subdivision (c)(2), and a person's installation and use of a certified ISA device must remain a condition for obtaining and maintaining a restricted driver license pursuant to subdivision (c)(1), for the duration of the ISA device usage period.

55-10-904. Administration.

The department shall administer this part and establish procedures for:

(1) Notifying speeding offenders of ISA device requirements; and

(2) Receiving notification of installation and removal of certified ISA devices.

55-10-905. Costs – Administrative fee – Affordability.

(a) A speeding offender required by the court to operate only a motor vehicle that is equipped with an ISA device pursuant to § 55-10-903 bears the cost of leasing, installing, removing, monitoring, and maintaining the ISA device, unless determined by the provider to be indigent and qualified to apply for a discount from the provider.

(b) An ISA device provider shall charge to, and collect from, each speeding offender required to use an ISA device an annual administrative fee of twelve dollars and

fifty cents (\$12.50). The proceeds of the fee must be transmitted to the department and must be used to fund the administrative costs of implementing this part.

55-10-906. Rules – Certification of intelligent speed assistance devices.

The department shall certify ISA devices for use and adopt rules and forms for the installation, maintenance, and certification of ISA devices. Rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, and the rules must include requirements that ISA devices:

- (1) Do not impede the safe operation of the motor vehicle;
- (2) Minimize opportunities to be bypassed, circumvented, or tampered with, and provide evidence that such device has not been bypassed, circumvented, or tampered with;
- (3) Work accurately and reliably in an unsupervised environment;
- (4) Have the capability to provide an accurate measure of speed and record each attempt to bypass, circumvent, or tamper with an intelligent speed assistance device;
- (5) Minimize inconvenience to other users of the motor vehicle;
- (6) Be manufactured or distributed by an entity that is responsible for the installation, user training, service, and maintenance of intelligent speed assistance devices; and
- (7) Operate reliably over the range of motor vehicle environments or motor vehicle manufacturing standards.

55-10-907. Intelligent speed assistance devices.

(a) The department shall publish a list of certified ISA devices and shall ensure that such ISA devices are available throughout the state. The department shall make the list available to speeding offenders, who have the responsibility and authority to choose which certified ISA device manufacturer or distributor will supply such offender's certified ISA device. A manufacturer or distributor of ISA devices that seeks to sell or

lease the ISA devices to persons subject to this part shall pay the reasonable costs of obtaining the required certification, as established by the department.

(b) A person shall not sell or lease, or offer to sell or lease, an ISA device to any person unless the ISA device has been certified by the department.

(c) A manufacturer or distributor of an ISA device shall provide support services as may be required at no cost to the state. Such services must include a toll-free, twenty-four-hour telephone number for the users of ISA devices.

55-10-908. Noncompliance – Authorized removal – Compliance.

(a) A speeding offender shall not:

(1) Tamper with the ISA device or any components of the ISA device, or otherwise circumvent the ISA device or its components;

(2) Remove or cause the removal of the ISA device from the motor vehicle at any time prior to completion of the ISA device usage period, except for necessary maintenance, replacement, or repair;

(3) Have, direct, authorize, or request another person to tamper with the ISA device or any components of the ISA device, or otherwise circumvent the ISA device or its components;

(4) Operate a motor vehicle that is not equipped with an ISA device when the offender is required by § 55-10-903 to only operate a vehicle equipped with an ISA device;

(5) Fail to appear at the ISA device provider when required for monitoring or inspection of the ISA device; or

(6) Fail to return the ISA device to the ISA device provider upon program completion.

(b) If an offender fails to comply with subdivision (a)(2), then the provider must notify the department of the removal and the department must revoke the offender's restricted license until such time as the offender has reinstalled a functioning, certified

ISA device. The provider shall notify the department of such reinstallation and the department shall reissue the offender's restricted license.

(c) Upon completion of the ISA device usage period, the provider shall remove the ISA device and provide the removal notification to the department and the offender. The department shall remove the ISA device restrictions from the offender's driver license and, if the offender meets all requirements for driver license reinstatement and pays all applicable reinstatement fees, shall reinstate the offender's driver license.

(d) A provider, manufacturer, or distributor of a certified ISA device has a cause of action against a person who fails to comply with subdivisions (a)(1)-(3) or (a)(6) for damages to an ISA device or to the provider, manufacturer, or distributor, arising out of an action taken pursuant to subdivisions (a)(1)-(3) or (a)(6).

55-10-909. Data confidentiality.

All documents, records, identifying information, monitoring data or results, and other information recorded, collected, maintained, transmitted, or stored by an ISA device provider about or concerning a speeding offender is confidential and not available for public inspection. All such information must remain confidential when it is transmitted, electronically or otherwise, maintained and stored, examined, or used by the department or the court. Only authorized employees of an ISA device provider, the department, or the court may view any document made confidential by this section.

55-10-910. Nonresidents – Reciprocity.

(a) A nonresident, as defined in § 55-50-102, who is required by another state to install and maintain an ISA device to operate a motor vehicle shall not operate a motor vehicle in this state unless that vehicle is equipped with a certified ISA device.

(b) If a nonresident, as defined in § 55-50-102, who is required by another state to install and maintain an ISA device to operate a motor vehicle becomes a resident of this state while subject to the ISA device requirement in another state, then the resident must comply with this part and the ISA device usage period is the period that would have

been required for a conviction of a speeding offender in this state, or for the period of time required by the other state, whichever is longer.

(c) If a resident of this state is subject to an ISA device requirement pursuant to this part and becomes a resident of another state that has an ISA device requirement, then the former resident must install and use an ISA device in that state for at least the time remaining under the ISA device usage period under this part. Failure to do so must result in suspension of the former resident's driving privileges in this state until completion of the ISA device usage period required by this part.

(d) The department may recognize the requirements of another state's ISA device law for purposes of determining whether a person was required by another state to install and maintain an ISA device. The burden of supplying evidence of such ISA device installation and maintenance relies solely on the person subject to the requirement.

55-10-911. Liability clarifications.

(a) A manufacturer, distributor, or retailer of a motor vehicle is not liable for any loss, injury, or damages caused by the design, manufacture, installation, improper installation, use, or misuse of an ISA device. A manufacturer, distributor, or retailer of a motor vehicle is liable if the manufacturer, distributor, or retailer knowingly engages in a repair or update to the ISA device and the repair or update proximately causes loss, injury, or damage.

(b) This part does not require a manufacturer, distributor, or retailer of a motor vehicle to manufacture, distribute, or offer for sale a motor vehicle that includes or is compatible with an ISA device.

(c) This part does not prohibit a lessor or lienholder from requiring that a motor vehicle lessee or owner notify the lessor or lienholder that an ISA device has been installed on a motor vehicle that is subject to a lease or finance agreement.

55-10-912. Reporting.

The department, beginning February 1, 2028, and thereafter annually, on or before February 1, shall report in writing to the transportation and safety committee of the senate and the committee of the house of representatives having jurisdiction over transportation matters the number of speeding offenders who have, in the previous year, had installed on their motor vehicles ISA devices, and which circumstance listed in § 55-10-902(7)(A)-(F) required the use of each device. The department shall also include in the report a summary of recidivism rates and ISA device user compliance.

55-10-913. Rulemaking.

The department is authorized to promulgate rules to implement this part in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. For the purposes of promulgating forms and rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2027, the public welfare requiring it, and applies to violations occurring on or after that date.